

AGREEMENT BETWEEN
BOARD OF EDUCATION OF THE TOWN OF EASTON
AND THE
EASTON EDUCATION ASSOCIATION

2018 - 2021

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INTRODUCTION

This Agreement, entered into this 31st day of JANUARY, 2018, by and between the BOARD OF EDUCATION OF THE TOWN OF EASTON (hereinafter referred to as the "Board") and the EASTON EDUCATION ASSOCIATION (hereinafter referred to as the "Association") shall take effect on July 1, 2018 and shall remain in full force and effect until and including June 30, 2021.

ARTICLE 1

RECOGNITION

- 1.1 The Board recognizes the Association for the purpose of professional negotiation as the exclusive representative of the entire teachers' unit consisting of the group of certified professional employees and employees working under a Durational Shortage Area Permit (DSAP) who are employed by the Board in positions requiring a teaching or other certificate and are not included in the administrators' unit or excluded from the purview of Sections 10-153a to 10-153n, inclusive, of the Connecticut General Statutes. All provisions of the collective bargaining agreement, except Article 6, apply to holders of DSAPS. Certified long-term substitute teachers are recognized as part of the teachers association and will receive coverage under the provisions of this Agreement to the extent that coverage is expressly included in any provision herein.
- 1.2 The Association recognizes that the Board has and retains the full and exclusive powers, as further described herein, to manage, operate and administer the Easton school system except to the extent such powers are abridged or modified by a specific provision of this Agreement or applicable law.

The powers of the Board or its designee, to the extent allowed by law, include, but are not limited to, the right to: maintain good public schools; implement the educational interests of the state and provide such other educational activities as in its judgment will best serve the interests of the district and town; give all the children of the district as nearly equal advantages as may be practicable; have charge of the schools; establish or continue policies, practices and procedures for the conduct of Board business and, from time to time, change or abolish such policies, practices or procedures, to the extent allowed by law; make continuing study of the need for school facilities and long-term school building program; have the care, maintenance and operation of buildings, lands, apparatus and other property used for school purposes; decide the textbooks to be used; determine the number, age and qualifications of the pupils admitted into each school; determine and from time to time re-determine the number of employees to be employed; select and determine the qualifications of employees; determine job descriptions and job classifications; create, enforce and from time to time change rules and regulations concerning discipline and the performance of work; establish contracts; to schedule, hire, terminate, non-renew, discipline, assign, promote, demote, transfer, or otherwise relieve employees from duty for lack of work or other legitimate reasons; designate the schools which shall be

attended by the various children within the district; provide for the transportation of children; cause each child between seven and sixteen years of age living in the district to attend school; and prepare a statement of educational goals for the district.

The listing of specific rights herein is not intended to be all inclusive, restrictive or a waiver of any rights of the Board not listed which have not been expressly and specifically surrendered herein, whether or not such rights have been exercised by the Board in the past.

ARTICLE 2

PROFESSIONAL NEGOTIATION

- 2.1 The Board and the Association agree to commence negotiations in good faith pursuant to Sections 10-153a through 10-153n of the Connecticut General Statutes as amended. The agreement so negotiated shall bind and inure to the benefit of the Board and all members of the bargaining unit and shall be reduced to writing and signed by duly authorized representatives of the Board and the Association.
- 2.2 During the negotiations, the Board and the Association shall exchange relevant data, points of view, and proposals and counter-proposals. Either party may, if it so desires, utilize the services of outside consultants and call upon professional and lay representatives to assist in the negotiation.

ARTICLE 3

GRIEVANCE PROCEDURE

- 3.1 A grievance shall be defined as a complaint by the Association or a member/members of the unit that a party to this Agreement has violated or misapplied a specific provision of this Agreement. The parties hereto agree that they will promptly attempt to adjust all grievances arising between them involving application of a specific term or provision of this Agreement.
- 3.2 Thus, should a grievance arise during the term of this Agreement, the aggrieved party shall use the following procedure as the sole means of settling said grievance.
 - 3.2.1 If the grievant is unable to settle the grievance informally with the School Administrator, and wishes to process the grievance, the grievant shall proceed as follows:
 - 3.2.2 Step 1. Within thirty (30) days of the act or event which gave rise to the grievance, the grievant shall reduce such grievance to writing, stating the specific article, section and subsection of the Agreement alleged to have been violated, and shall submit it to the Administrator. The Administrator shall meet with the grievant within ten (10) days of the submission of the written grievance and respond to the grievance in writing, within five (5) days of the meeting.

3.2.3 Step 2. In the event the grievant is not satisfied with the disposition of the grievance at Step 1, the grievant may submit it to the Superintendent. The written grievance must be submitted to the Superintendent within five (5) days following the School Administrator's decision at Step 1. The grievant shall meet with the Superintendent and the Principal and shall attempt to settle the grievance within seven (7) days of the submission of the grievance. The Superintendent shall respond to the grievance in writing within five (5) days of the meeting with the Superintendent, teacher and School Administrator or within twelve (12) days of the submission of the grievance if there has not been such meeting.

3.2.4 Step 3. If the grievance is not settled after submission to the Superintendent as set out in Step 2, the grievant may request a hearing and a review of said grievance by the Board. Such request shall be in writing containing the alleged facts pertinent thereto including all correspondence relevant thereto, and must be submitted to the Board within five (5) days following the Superintendent's decision at Step 2. The Board or a committee of the Board shall convene a meeting and review such grievance within a reasonable period of time, but not to exceed thirty (30) days of receipt of notice. The Board or the Committee, by majority vote of either, shall render to the grievant or his designated representative its decision in writing within ten (10) days from the conclusion of the meeting.

3.2.5 If the matter is not resolved to the grievant's satisfaction at Step 3, then the grievant, provided such filing has the approval of the Association and is accomplished within ten (10) days of the Step 3 decision, may submit the grievance to arbitration according to the then prevailing Voluntary Labor Arbitration Rules of the American Arbitration Association. The costs for service of the Arbitrator, including per diem expenses, if any, and actual and necessary travel and subsistence expenses, shall be borne equally by the Board and the Association. The Arbitrator shall hear only one grievance at a time. The Arbitrator's decision shall be in writing and shall set forth his or her findings of fact, reasoning, and conclusions on the issue(s) submitted. The Arbitrator shall derive his or her authority from the Agreement and shall be without power or authority to alter, amend, delete or disregard provisions of the Agreement. The decision of the Arbitrator shall be submitted to the Board and to the Association, and, subject to law, shall be final and binding.

3.3 Any grievance not presented or followed up through the grievance procedure in the time limits contained therein shall be deemed waived. If at any step in the grievance procedure the Administration fails to give its answer within the prescribed time, the grievance may proceed to the next step, unless time is extended by mutual consent in writing.

3.4 Days shall mean school days during the school year and days that Central Office is open during summer recess.

ARTICLE 4 COMPENSATION

4.1 Salary Schedule. The Salary Schedule for the contract period is contained in Appendices A, B & C attached hereto.

4.2 Degree Status Change & Placement on Salary Schedule

4.2.1 Teachers who expect to achieve higher degree status must give the Board advance notice by December 1 of the preceding contract year to be eligible for such degree change. Each teacher shall be eligible for advanced salary recognition two times yearly. Changes in status, supported by an official transcript which takes place prior to October 15, shall be retroactive to the first teacher workday of the school year, and changes in status that take place prior to March 15 shall be retroactive to January 1 of the contract year in which the changes occur.

B.A. A baccalaureate degree earned at an accredited college or university.

M.A. A master's degree earned at an accredited college or university.

M.A. +15 Fifteen (15) credits of graduate work earned after the award of the master's degree at an accredited college or university. The MA +15 lane closes to new entrants as of July 1, 2017.

Sixth Year A second master's degree in a relevant discipline or a Sixth Year Certificate from an accredited college or university. A MA degree plus thirty (30) credits or a MA degree requiring at least sixty (60) semester hours of graduate credit.

Doctorate An earned doctorate degree in a relevant discipline awarded by an accredited college or university.

4.2.2 Through June 30, 2018, for teachers currently receiving this stipend with more than ten (10) years teaching experience holding a sixth year certificate, shall be entitled to an annual stipend of \$922 upon completion of fifteen (15) credits and an additional \$922 upon completion of thirty (30) credits fifteen (15) credits beyond the first fifteen (15) for courses completed prior to January 1 in the current school year. Such credits need not be part of a specific degree program or plan or taken at a single institution.

To be eligible for accumulation toward the stipend, each credit must be approved in advance by the Superintendent.

Decisions by the Superintendent under this section will not be subject to the grievance and arbitration provisions of this Agreement.

4.3 Evaluation of Prior Teaching Experience

4.3.1 At the time of hiring, the Superintendent shall evaluate the prior teaching experience of the teacher and shall establish a placement on the salary schedule, which shall not be subject to the grievance provisions of this contract.

4.3.2 In no event will a newly hired teacher be placed on a salary step higher than a teacher currently in the system who has the same level of experience.

4.4 Credit on the salary schedule for teaching experience in the Military, VISTA, the Peace Corps, or for previous non-teaching experience in related fields may be granted upon the recommendation of the Superintendent.

4.5 Increments – Withholding Salary Increase.

4.5.1 Except as may be otherwise provided in this contract, teachers will receive annual increments provided in the salary schedule.

4.5.2 A teacher who has not demonstrated satisfactory performance may be denied the increment based on the direction of the Superintendent.

4.5.3 A teacher who has not demonstrated satisfactory performance and who would not receive an annual increment either because the teacher has previously attained the maximum step on the salary schedule referred to in Section 4.1 or because this contract does not provide for step movement, may be denied up to half of the amount of any salary increase to which such teacher might otherwise be entitled based on the direction of the Superintendent.

4.5.4 Teachers who may be subject to an increment withholding must have been given the opportunity, through either Intensive Assistance or Structured Support, to improve their performance which in no event shall be less than 90 days. After the teacher has had the opportunity to make improvements, the Superintendent will give the teacher written notice. Written notice must be made by June 1st unless waived by mutual agreement of the parties.

4.5.5 No teacher shall be denied an annual increment or a portion of a salary increase under sections 4.5.2 or 4.5.3 without just cause.

4.6 Salary Deduction. For absences in excess of those allowed by provisions of this Agreement, salary deductions shall be made as follows:

4.6.1 A full day's pay for a teacher shall be computed by multiplying the teacher's annual salary by a fraction whose numerator shall be one (1) and whose denominator shall be the number of days, or the equivalent thereof, in the teacher's employment year.

4.6.2 Substitute salary may be deducted from the teacher's daily salary, as provided elsewhere in this Agreement.

4.7 Salary Payment

- 4.7.1 Each teacher will have the option to choose between twenty-one (21) equally divided payments, or twenty-six (26) equally divided payments.
- 4.7.2 Each teacher shall be paid by a direct deposit, by electronic means, to a bank of the teacher's choice for all regular salary payments due the teacher in accordance with this section.

4.8 Longevity

- 4.8.1 During a teacher's second (2nd) year at the maximum step of the salary schedule in the Easton Public Schools and each year thereafter, the teacher shall receive an additional yearly payment of \$1,974.

The longevity stipend shall be paid in two (2) equal installments, payable on the payroll dates nearest December 1 and June 30. Such special payments shall be identified to provide for accurate record keeping. No teachers employed after July 1, 2019 will receive a longevity payment.

- 4.8.2 A teacher who is in good standing and who gives written binding notice of his/her retirement effective the end of the current school year to the Superintendent by February 1 will receive a one-time lump sum payment of \$2,000 with his/her paycheck in July of the fiscal year following such notice. "Retirement" for this section shall be defined as retirement in accordance with the Connecticut State Teachers' Retirement Board.

4.9 Payroll Deductions. Teachers shall have the option of having the following deductions made from their pay, providing the individual teacher so authorizes in writing:

- Waterbury Teachers' Federal Credit Union,
- Trumbull Credit Union, and
- Tax Sheltered Annuities (TSA) or 403(b) accounts of the teacher's choice selected from a list provided from the District Administrative Office of providers in compliance with IRS regulations. No third party administrator fees will be charged to the participants.

4.10 Dues Deduction and Service Fee Deduction.

- 4.10.1 Conditions of Continued Employment: All teachers employed by the Easton Board of Education shall, as a condition of continued employment, join the Association or pay a service fee to the Association. Said service fee shall be equal to the proportion of the Association dues uniformly required of members to underwrite the costs of collective bargaining, contract administration and grievance adjustment.

- 4.10.2 Deductions: Upon the receipt of appropriate written authorization from the affected teacher, the Easton Board of Education agrees to deduct from each teacher an amount equal to the Association membership dues or service fee by means of payroll deductions. The amount of the deduction from each of twenty (20) paychecks for membership dues shall be equal to the total Association membership dues divided by the number of paychecks from and including the first paycheck in September through and including the first paycheck in June. The amount of the deduction for service fee from each paycheck shall be equal to the total service fee divided by the number of paychecks from and including the first paycheck in January through and including the last paycheck in June. The amount of Association membership dues shall be certified by the Association to the Board of Education prior to the opening of school each year. The amount of service fee shall be certified by the Association to the Board of Education prior to January 1st of each school year.
- 4.10.3 Subsequent Employment: Those teachers whose employment commences after the start of the school year shall pay a pro-rated amount equal to the percentage of the remaining school year.
- 4.10.4 Forwarding of Monies: The Board of Education agrees to forward to the Association each pay period a check for the amount of money deducted during the pay period. The Board shall include with such check a list of teachers for whom such deductions were made.
- 4.10.5 Lists: The Board agrees that it will provide the Association with a list of all members of the unit and the positions held by said members when a request for such list is made at least 10 days in advance by the Association. The Association agrees that under normal circumstances, no such request will be made prior to October 15 in any school year, but never more than once in the school year. Updates/changes in the list will be provided to the Association if requested with advance notice.
- 4.10.6 Reference to Association: The singular reference to the "Association" herein shall be interpreted as referring to the Easton Education Association. It is understood that the Association has the right to involve representatives of its affiliates -- the Connecticut Education Association and the National Education Association -- at its discretion.
- 4.11 Extra Pay for Extra Responsibility. Any staff member desiring to initiate an extra-curricular program shall present an outline of the entire program to the Superintendent. If the program is approved by the Superintendent, then the teacher(s) participating in such approved program shall be paid \$45 per hour or such higher rate as the Superintendent may determine for the operation of the program.
- 4.12 Advisors and Team Leaders. The Board agrees to compensate certified teachers for extra duties as listed below. In the event no teacher accepts the duty in a given school year, the administration has the option to hire personnel from outside the system or bargaining unit or to appoint an existing staff member for the position or responsibility.

When appointed, the teacher shall not be obligated to serve in this position for more than one school year.

Extra-Curricular Advisory Stipends	2018-2019	2019-2020	2020-2021
Art Club	\$1,365	\$1,365	\$1,365
Garden Club Advisor	\$1,365	\$1,365	\$1,365
HKMS Government	\$3,232	\$3,232	\$3,232
HKMS Newspaper/ Literary Magazine	\$1,407	\$1,407	\$1,407
HKMS Play Director	\$3,588	\$3,588	\$3,588
HKMS Play Musical Director	\$3,280	\$3,280	\$3,280
HKMS Yearbook	\$1,930	\$1,930	\$1,930
Homework Club Advisor	\$1,365	\$1,365	\$1,365
Jazz Band	\$1,185	\$1,185	\$1,185
Math Team Advisor	\$1,316	\$1,316	\$1,316
Peer Leadership	\$1,492	\$1,492	\$1,492
Play Producer	\$2,142	\$2,142	\$2,142
Select Choir	\$1,185	\$1,185	\$1,185
Show of Stars	\$612	\$612	\$612
SSES Student Senate	\$3,232	\$3,232	\$3,232
SSES Yearbook	\$1,230	\$1,230	\$1,230
Track & Field	\$1,820	\$1,820	\$1,820
Ultimate Frisbee (Fall)	\$976	\$976	\$976
Ultimate Frisbee (Spring)	\$976	\$976	\$976
Volleyball	\$1,365	\$1,365	\$1,365
Weather Club	\$1,365	\$1,365	\$1,365
Operational Stipends			
Graduation Coordinator/ Nature's Classroom SSES	\$1,365	\$1,365	\$1,365
Graduation Coordinator HKMS	\$1,365	\$1,365	\$1,365
Instructional Specialist	\$3,447	\$3,447	\$3,447
Peer Practice Coach	\$1,534	\$1,534	\$1,534
Team Leader	\$3,447	\$3,447	\$3,447
Web Master	\$2,085	\$2,085	\$2,085

With the exception of the Webmaster at each school, rates above are for each teacher/advisor per program (e.g., if there are two (2) teachers advising student council, each teacher will receive the stipend listed above each year they advise for that program).

The number of advisors or chaperones will remain an administrative decision, as will the decision whether to offer the club or not. All vacant positions in this Section to be filled in a given school year shall be posted prior to the end of the preceding school year.

No staff member shall be approached or assigned by an administrator to pilot or run an extracurricular program unless compensation negotiations have been completed. Compensation for teacher initiated programs is provided for in Section 4.11 above.

Nothing herein shall prevent an administrator from communicating to the entire staff an idea he/she has for an activity. Staff members will be allowed to respond with their interest in the idea to that administrator. Should such idea become an actual activity, the administrator shall create a position responsibility description which will serve as the basis of the compensation negotiations which shall be conducted pursuant to CGS-10-153. The position responsibility description, along with the agreed upon stipend, shall be posted.

4.13 Extra-curricular Chaperones.

Teachers who chaperone extra-curricular activities shall be compensated at the rates listed below:

Position	
Daytime (per hour)	\$ 35.00
Overnight (Mon-Thurs. per night)	\$259.00
Overnight (Fri., Sat., Sun., per night)	\$343.00
Ski Trip (per trip)	\$189.00

For the purposes of this provision "chaperoning" is understood to mean student contact services that are performed other than during the normal teacher work day. Student contact time includes the time spent traveling to and from the place of student contact. This provision shall not be applied to the first three (3) hours of a class field trip that extends beyond a teacher's normal school day.

Overnight trips scheduled wholly within a period when school is not in session shall not be subject to compensation.

In the event more teachers volunteer for a given activity than the administrator determined number; then the positions shall be filled in as equitable a manner as possible, utilizing the first-to-volunteer/first-to-serve principle along with administrative discretion.

Prior to October 1 of each year the administration will post a list of available chaperoning opportunities for events on the annual school calendar. The dates of additional activities requiring chaperones will be posted within a reasonable time of their being scheduled, but not more often than once a month.

An event specific sign-up sheet, noting the number of chaperones needed, will be posted two (2) weeks prior to such event. Should the activity be scheduled with less than a two (2) week lead time, the sign-up sheet will be posted as soon as possible.

4.14 Special Services, as herein described shall be compensated as follows:

4.14.1 Homebound Instruction. The compensation for homebound instruction when performed at times other than the regular teacher work day shall be \$60.00 per hour in 2018-2019, 2019-2020 and 2020-2021.

In addition, mileage will be paid at the applicable IRS rate.

When the regular teacher of a student on homebound instruction uses time other than the regular teacher workday to prepare materials for the person providing the homebound instruction, the teacher shall be paid at an hourly rate equivalent to the rate for the homebound tutor as outlined above.

4.14.2 Summer Work. Summer work, such as curriculum work, professional growth experiences, preparation for teacher-run workshops, extended year summer tutoring etc. shall be voluntary. When authorized by the administration during the summer, curriculum work, attendance at PPT's, preparation for teacher-run workshops and extended year summer tutoring shall be paid at an hourly rate of \$60.00, except for teachers working in the special education summer program, who shall be paid at an hourly rate of \$63.00, in 2018-2019, 2019-2020, and 2020-2021.

4.14.3 Travel Expense. When a teacher is authorized or required to use his/her own automobile for approved school business at an alternate site, he/she will be compensated for the distance traveled as follows:

- a. Within the ER9 district, the following standardized distances shall be used:

HKMS to RES	=	11 miles
HKMS to JRMS	=	13 miles

HKMS to JBHS	=	7 miles
HKMS to SSES	=	2 miles

SSES to RES	=	9 miles
SSES to JRMS	=	11 miles

SSES to JBHS	=	7 miles
SSES to HKMS	=	2 miles

- b. Outside the ER9 district, compensation shall be for the distance that exceeds the teacher's normal daily commute to and from her/his regularly assigned building. The rate of reimbursement shall be the mileage rate allowed for deduction by the IRS. Actual mileage driven shall be reported by the teacher on the mileage reimbursement request form.

If travel occurs on a non-teacher work day, mileage reimbursement shall be for the distance traveled to the location and back to the teacher's home.

4.14.4 Cafeteria Supervision. For performing cafeteria supervision, as authorized by the building principal or administration, the teachers shall be compensated at a rate of \$24.00 per lunch period in 2018-2019, 2019-2020, and 2020-2021.

4.14.5 Lunch Bunch. For assuming direction of a group of students at lunch time, in accordance with the provisions of an approved IEP, when such scheduling, as authorized by the building principal, does not afford the teacher either a preparation period or duty free lunch to which the teacher may otherwise be entitled, the teacher shall be compensated for each such lunch bunch the amount specified in section 4.14.4 for Cafeteria Supervision.

4.14.6 When an administrator is out of the district, a member of the teaching staff may be appointed by the administrator to act as "administrative designee" in the absence of the administrator. The appointed teacher shall be paid \$41 per hour with a one (1) hour minimum. Time shall accrue when the administrator leaves the district and until the administrator returns to the district.

At the principal's sole discretion, teachers holding administrative certification will be afforded the opportunity to use such responsibilities to keep their certificates current.

4.15 Any Teacher who is a TEAM certified mentor and is matched with a new teacher shall be paid a stipend of \$1,250 in each year of the mentor assignment for each match. Any teacher who is a TEAM Reflection Paper Reviewer and participates in the review of reflection papers will receive \$50 per paper scored.

4.16 For a teacher obtaining "National Board Certification" or a certified professional employee currently receiving the stipend who obtained a similar certification, \$5,000.00 a year will be paid for each year such teacher maintains said certification.

"National Board Certification" shall include certification from NBPTS (National Board for Professional Teaching Standards), NASP (National Association of School Psychologists), NBCC (National Board for Certified Counselors), or ASHA (American Speech Hearing Association).

4.17 Dual Certification

For teachers employed in the Easton School District prior to July 1, 2009, and receiving the dual certification stipend prior to July 1, 2017, the following certification combinations are deemed to enhance a teacher's job performance and would be subject to a stipend in the amount of 10% of salary not to exceed \$5,000.00.

- "Regular Education Classroom Certification" (Endorsements 001, 002, 003, 004, 005, 006, 007, 008, 013, 015, 018, 023, 025, 026, 027, 029, 030, 031, 032, 033, or 034) and "Special Education" (Endorsement 065, 113, 165, or 265)
- "Regular Elementary Education (Endorsements 001, 002, 003, 004, 005, 006, or 013) or "English 7-12" (Endorsement 015) and "Reading" (Endorsement 063, 064, 096, 097 or 102)
- "Special Education" (Endorsement 065, 113, 165 or 265) and "Assistive Technology"
- "Spanish" and "French" (Endorsements 018 and 023)
- Combination of any 2 of the following 3 certificates:
 - Math 7-12 (Endorsement 029)
 - Science 7-12 (Endorsement 030, 031, 032, 033, 034)
 - Technology 7-12 (Endorsement 047)
- "Physical Education" and "Health" (Endorsements 043 and 044)

4.18 District Mentors

1. All new District Mentors will attend a workshop that will cover the services they will be expected to provide new teachers.
2. Teachers new to an assignment may be assigned a District Mentor who has been selected by the School Administrator according to stated criteria. Teachers with new assignments may request that the School Administrator assign a District Mentor. The Association may provide the School Administrator with names of teachers interested in serving as guides. The principal shall be the sole authority to determine whether a teacher is either named or assigned a District Mentor.
3. The District Mentor will contact the new teacher before the start of school to explain the role of the District Mentor and to meet with the new teacher before the start of classes. The District Mentor will inform the new teacher of the starting procedures and help the new teacher understand the curriculum. The District Mentors may help the new teacher plan out beginning units and lessons or provide ideas, sample plans, work sheets, etc.
4. The District Mentor is expected to serve as a resource for the new teacher throughout that teacher's first year.

5. Each District Mentor will be paid \$275.00 annually for each teacher matched with such District Mentor. No District Mentor will be assigned more than three new teachers.
6. New Teachers with assignments in more than one building may be assigned a District Mentor for each building. District Mentor's whose new teacher assignee works less than 100% of the time in the District Mentor's building will be paid the sum equal to the amount in Section 5, times the decimal equivalent of the percentage of time the new teacher is assigned in the District Mentor's building.
7. Application procedure: Principals will assign District Mentors from a voluntary pool of trained District Mentors. Individuals interested in becoming a guide should notify the principal in writing by May 1 and attend one of the District Mentor training sessions prior to the start of school in the fall.

- 4.19 Each teacher serving in one of the year-long positions described in Section 4.12, 4.15 and 4.18 shall be paid the stipend to which that teacher is entitled in two (2) equal installments on the payroll dates nearest December 1 and June 1 of the school year in which the service is rendered.

For other assignments which carry stipend, the teacher shall be paid the appropriate amount within the payroll period next following the completion of this assignment, as attested to by the school principal.

Stipends shall be identified on payroll checks to the extent and to the degree of specification that the payroll computer program allows, or separate checks shall be issued.

- 4.20 Tutoring for Payment. A teacher shall not accept non-school employment which interferes with the performance of his or her duties as a teacher. The Board agrees that this provision shall not be unreasonably applied. During the school year, a teacher shall not tutor students for remuneration while such students are assigned to the teacher's own class roster. If a teacher is allowed to tutor a student for remuneration, such activity shall not take place on school grounds.
- 4.21 Any member of the bargaining unit who being properly and appropriately credentialed both in Special Education and Board-Certified Behavioral Analyst (BCBA) endorsements will receive acknowledgement in the form of a stipend in the amount of \$5,000.00 per year for the duration of the Agreement.

ARTICLE 5

INSURANCES

5.1 The Board agrees to assume the cost of coverage for teachers, employed one-half (.5) time or more, and their families for the following insurances. If such teacher elects to be covered hereunder, all subject to the provision of 5.2 below.

5.1.1 High Deductible Health Plan (HDHP) with a Health Savings Account (HSA), and a Health Reimbursement Account (HRA) for teachers not eligible for the HSA as summarized herein.

- In the first year only (2018-19), teachers may choose to “buy-up” to the Anthem Blue Cross and Blue Shield Century Preferred Provider Plan (PPO). The cost of such “buy-up” shall be the sum of (1) the teacher’s premium cost share for the HDHP plan, which shall be determined by applying the same employee premium cost-sharing that applies to teachers electing the HDHP, and (2) the difference between the cost of the PPO and the applicable HDHP premium equivalent. There shall be no change in PPO benefits.
- Starting in 2019-20, the HDHP plan will be the only insurance option offered by the Board, and the PPO option will be eliminated.
- The High Deductible Health Plan with a Health Reimbursement Account (HDHP-HRA) shall be limited to teachers who are not eligible for the HSA (e.g., because they participate in Medicare or have recently received benefits from the Veteran’s Administration or other limits as required under IRS code). The Board shall set up a HRA for teachers participating in the HDHP-HRA with the contribution amounts equal to the Board contributions that are deposited into the HSA for eligible teachers. The Board funding to the HRA shall include a rollover feature for each covered individual allowing any unused HRA deductible funds to be rolled over to the amount legally allowed.
- In 2018-19, the Board will contribute 70% of the applicable HDHP deductible amount for active teachers participating in the HDHP. In each of 2019-20 and 2020-21, the Board will contribute 50% of the applicable HDHP deductible amount for active teachers participating in the HDHP. The Board shall have no obligation to fund any portion of the HDHP deductible for retirees or other individuals upon their separation from employment. In the event that a teacher elects the HDHP after the start of the plan year, the Board’s contribution toward the deductible shall be pro-rated for that year.
- In 2018-19 and 2019-20, the Board will make one hundred percent (100%) of its contribution toward the HDHP deductible on or about July

1 or as soon thereafter as practicable. In 2020-21, the Board will make fifty percent (50%) of the Board's contribution toward the HDHP deductible on or about September 1 or as soon thereafter as practicable and fifty percent (50%) on or about December 1 or as soon thereafter as practicable. In order to receive the Board's contribution toward his/her HDHP deductible, a teacher must provide the Board's Human Resources Department or designee with the teacher's bank account information so that such contribution may be deposited into the teacher's bank account.

- The teacher will be responsible for opening his/her HSA account at a bank jointly selected by the Board and the Association. If the bank imposes any bank fees associated with maintaining the HSA account, the parties agree to jointly select another bank for the HSA account. At no time will the Board pay for any bank fees associated with the teacher's HSA bank account, including, without limitation, monthly maintenance fees and overdraft charges. The Board will make provisions for a pre-tax direct deposit payroll deduction for teachers who elect the HDHP.
- The deductible will be \$2,000 (single)/\$4,000 (employee + 1 and family) in each of 2018-19, 2019-20, and 2020-21.
- Starting in 2019-20 (year 2 of the Agreement), prescription drug copayments, after the deductible is satisfied, will be \$5 (generic)/\$25 (preferred brand)/\$40 (non-preferred brand), with mail order at two (2) times these retail co-payments for a ninety day supply.
- Once the HDHP deductible is met, benefits will be covered at 100% for in-network, and out-of-network services will be subject to 80%/20% co-insurance.
- The combined in and out-of-network out-of-pocket maximums are as follows:
 - i. In network (for 2018-2019 only): \$2,000 (single)/\$4,000 (employee + 1 and family)
 - ii. In network (for 2019-2020 and 2020-2021): \$3,000 (single)/\$6,000 (employee + 1 and family)
 - iii. Out-of-network (in 2018-19, 2019-20, and 2020-21): \$4,000 (single) and \$8,000 (employee + 1 and family)
- The parties agree that the specific terms and limitations of the medical and dental plans offered by the Board are set forth in the Summary Plan Description, which is incorporated herein by reference. The Summary Plan Description shall reflect the terms set forth in this Agreement.

- 5.1.2 Anthem full dental service plan with Dental Amendatory Rider A covering Oral Surgery.
- 5.1.3 The Board may, at its discretion, offer additional plan options to the teachers. The selection/acceptance of any of the additional plans shall be on an individual, voluntary basis.
- 5.2 Each teacher who participates in the health insurance coverage provided by the Board as contained in Section 5.1 above shall pay a percentage equal to:

2018-2019	20.0%
2019-2020	20.0%
2020-2021	20.0%

on a pre-tax basis, to the extent allowed by law, of the annualized premium cost incurred by the Board for such coverage effective as of July 1 in each contract year.

The Board shall determine the applicable premium share amount for any additional insurance option offered under Section 5.1, provided the amount does not exceed the premium share amount then in effect for any existing plan options. Should the new option's proposed premium share exceed then current premium share amounts, mid-stream bargaining shall be initiated and completed before the premium share amount becomes effective.

The payments required by this section shall be made through payroll deductions over twenty (20) consecutive pay periods commencing with the second pay period of the school year.

- 5.3 Teachers shall also be covered by a Group Disability insurance with a monthly benefit equal to 60% of earnings to a policy designated maximum and a 90-day elimination period (pursuant to policy currently in existence in the District Administrative offices).
- 5.4 Annually, each teacher shall fill out a form, provided by the Board, which shall provide the Board with information concerning any other health hospitalization or Major Medical insurances which provide coverage for the teacher, his or her spouse and/or his or her dependents.
- 5.5 Teachers who are covered by health insurance in addition to that provided by the Board may elect to cancel the coverage enumerated under Section 5.1.

To be eligible to cancel coverage, a teacher must present evidence of such alternate insurance. Cancellation of coverage shall be made between June 1 and June 20 of each year and shall be effective during the succeeding July 1 through June 30 period. Teachers in their first year of employment by the Board are not eligible to cancel their coverage.

A teacher who has canceled health insurance coverage provided in Section 5.1 can subsequently reelect such coverage only after providing proof of insurability unless the

reelection results from a change in marital status or as otherwise provided by law.

For teachers currently receiving the payment as of July 1, 2015, the cost reimbursement shall be based on the class of coverage in effect at the time of initial cancellation and shall be

\$1,125, if insured as an individual
\$1,625, if insured with a spouse
\$2,125, if insured with a family

and will be paid to the teacher along with the first paycheck in December. The in lieu of payment will not be available to a teacher whose spouse is also an employee of the Easton Board of Education. No additional teachers will be entitled to receive this payment.

- 5.6 The Board agrees to assume the cost of coverage for the individual teacher for term life insurance in the amount of \$50,000 with \$50,000 coverage for accidental death or dismemberment, according to policy terms currently in force.

- 5.7 The Board shall retain the full authority to change health plan administrators for the above-listed coverages at any time, provided that the coverage and services provided by the new administrator will be substantially equivalent to that provided by the previous administrator. The Board agrees to inform the Association of any such change in administrator thirty (30) days prior to the institution of the change. Included with the notice of change will be information showing comparability of coverage.

It is not the intention of this section to allow exclusion of a class of benefit coverage by a new administrator, which was provided by the previous administrator.

If a health plan administrator has a restricted or preferred list of health providers, a successor administrator will be deemed substantially equivalent if at least 90% of the providers listed on the former plan are contained on the successor administrator's list.

- 5.8 The Board shall maintain a pre-tax dollar Flexible Spending Account Plan under the appropriate sections of the Internal Revenue Code applicable to teachers for expenditures for dependent care. The Board shall establish a Flexible Spending Account Plan for those teachers who are enrolled in a Health Reimbursement Account or are not enrolled in the HDHP. The Board will continue to offer a Section 125 Premium Only plan.
- 5.9 When a teacher's separation from the Easton public schools is effective June 30th, and the teacher has notified the District prior to April 1 of the separation, the teacher has the option of continuing the same insurance coverage and the same premium share arrangement through August 31st of that year.

ARTICLE 6
REDUCTION IN FORCE

6.1 Definition. Reduction of professional staff shall mean that the total number of members of the staff will decline due to decreases in student enrollment, changes in curriculum, financial constraints, or other good and sufficient reasons.

6.2 Consultation. At such time as the Superintendent is aware that decreases in staff will be required and cannot be accomplished through normal attrition, then he/she will meet with the members of the executive board of the Easton Education Association to inform them of the situation and to invite their recommendations for alternative procedures, should they wish to submit them.

6.3 Release Procedure

6.3.1 Release of staff members shall be accomplished in the following order:

Tenure and Certificate Status:

- (1) Volunteer retirements and transfers within certification and qualification
- (2) Non-tenured teachers
- (3) Tenured teachers

6.3.2 The primary consideration in determining the order of layoff for tenured teachers who are certified and qualified should be seniority. However, the strict application of the seniority program may be modified if the Superintendent shall reasonably determine that such is reasonably necessary in an individual case, for the benefit of the school.

6.4 Recall Procedure

6.4.1 If the contract of employment of a teacher is terminated because of elimination of position, the teacher shall be placed on a reappointment list, and may report to the Superintendent such changes in the teacher's certification and qualification as may occur. The teacher's name will remain on the reappointment list for a period not to exceed eighteen (18) months.

6.4.2 If a position becomes open during such period, the teacher with the highest seniority that is certified and qualified for the position, and is not then employed as a full-time teacher, shall be notified in writing by certified mail, return receipt requested, sent to his/her last known address. However, the strict application of the seniority provision may be modified if the Superintendent shall reasonably determine that such is reasonably necessary in an individual case, for the benefit of the school.

6.4.3 If the teacher wishes to accept the position, the teacher shall notify the Superintendent in writing, by certified mail, return receipt requested, or by hand delivery, within ten (10) days after the receipt of the letter of notice.

- 6.4.4 In the event a laid off employee is notified through certified letter by the Board of a position available for him/her to fill and said employee refuses to resume work in such a position, the employee will forfeit his/her place on the recall list and the Board will be bound in no way to offer future positions to the same laid off employee. It is understood, however, that the Board will not offer positions to laid off employees during recall which are outside the certification area or qualifications of the employee to be recalled and failure to resume work to a position for which the employee is not certified or qualified will not forfeit that employee's status on the recall list. It is also understood that a bargaining unit member whose full-time position is eliminated and is on the recall list may refuse to accept an offer of part-time employment without forfeiting his/her recall rights for the duration of the recall period and that an analogous right will exist for a bargaining unit member whose part-time position is eliminated. However, should a bargaining unit employee who formerly occupied a full-time position refuse a part-time position which is subsequently accepted by a less senior employee on layoff and, following such acceptance, should the position be elevated to full-time status, the less senior teacher (having accepted the position as part-time) will not be displaced by the more senior teacher, even if the more senior teacher is still on recall.
- 6.4.5 Each laid off employee will provide the Board with his/her current mailing address and the Board will only be bound to communicate to the employee through the address most recently provided.
- 6.4.6 Seniority List. This list will mean a list specifying the order of seniority of each teacher. The list will include the certification areas of each teacher and amount of accrued seniority. "Seniority" as used herein shall mean the prorated, full-time equivalent (FTE) time an individual has spent employed in a bargaining unit position with the Board. If two or more teachers have been employed the same FTE time, the teacher who first executed a contract of employment with the Board shall be deemed the more senior employee. The Board will provide the seniority list by no later than November 1 to the president of the Association. The Association shall promulgate the list to each teacher within thirty (30) days of receipt from the Board. It is the individual teacher's responsibility to keep the Board informed of any change in the status of his/her certification or other pertinent information.

Any teacher wishing to challenge his/her position on the list will submit in writing this challenge to the President of the Association and the Board no later than fifteen (15) calendar days after publication of the list.

The Association will then meet with the Superintendent or his/her designee in an effort to resolve this matter. Any unresolvable dispute between the parties shall be arbitrable pursuant to the arbitration provision of this Agreement, provided, however, that the Association retains the right to decide on a case by case basis if arbitration is appropriate.

- 6.4.7 A senior teacher who voluntarily accepts a part-time position as a result of a

reduction in force shall retain the right to return to a full-time position in the same certification occupied by a junior teacher for twelve months following the teacher's acceptance of the part-time position. The junior teacher who would have been reduced shall receive written notification from the Superintendent within ten days of the senior teacher's acceptance.

ARTICLE 7

PROFESSIONAL DEVELOPMENT

7.1 In-service.

7.1.1 The Superintendent of Schools or the Superintendent's designee shall seek input from an Association appointed representative about the content of educational programs for staff designed to have an impact on the Easton school system or a specific school in the system before scheduling such programs.

7.1.2 The scheduling of professional development programs, at which attendance for teachers is mandatory, shall not be scheduled by the administration:

- 1) for any time outside the regular teacher workday, or
- 2) outside the Easton, Redding or Region #9 school districts without prior negotiations with the Association.

7.2 **Tuition Reimbursement.** The Board agrees to reimburse teachers for courses taken after the Bachelor's degree in the amount of seventy-five (75) percent of the actual cost to a maximum of 15 credit hours and shall not exceed an amount of \$4,500 per annum. To be eligible for the reimbursement, the teacher must first submit a planned program of studies at an accredited college or university to the Superintendent for approval. In general, no courses toward the Master's degree will be eligible for reimbursement during the teacher's first year of employment, and no more than three (3) credit hours toward the Master's degree will be eligible for reimbursement during any semester that substantially overlaps with the Easton school year. Under exceptional circumstances, the Superintendent may authorize reimbursement for courses not included in an approved plan. For teachers who have already been awarded a second Master's degree or a sixth year certificate from an accredited college or university, individual course reimbursement must be approved in advance by the Superintendent. Decisions of the Superintendent to approve or disapprove course reimbursement shall not be subject to the Grievance provisions of this contract. Payment shall be made to the teacher for reimbursement on a timely basis, but in no case later than thirty (30) days after the submission of all documents. Courses with a final grade of "C" or below are not eligible for reimbursement under this provision.

On-line degree or certification endorsement programs must be accredited by one of the six regional accrediting commissions and accepted by the CSDE for graduate level

coursework. If a staff member intends to use the coursework to achieve a Master's level or earn an additional certification endorsement, the staff member must provide evidence that the on-line coursework is accepted by the CSDE for that purpose. In order to be eligible for course reimbursement, a teacher must remain in the system for at least one school year beyond the school year in which an approved course is taken. A teacher who voluntarily leaves the district within a year of receiving this course reimbursement shall repay the Board for such reimbursements.

- 7.3 The Board agrees to reimburse teachers for assessment and retake fees toward attaining "National Board Certification." To be eligible for reimbursement, teachers seeking such certification shall apply in such manner as the Board may establish.
- 7.4 Unless there is a prior agreement with the Association to do so, the Superintendent will not schedule professional development activities on state or federal holidays.

ARTICLE 8

SPECIAL ABSENCES WITH FULL PAY

- 8.1 The following absences are permitted with full pay and are non-cumulative:
- (a) Immediate family for all purposes under this Agreement means spouse, children, stepchildren, parents, siblings, grandparents, grandchildren, and parents-in-law.
 - (b) A leave of three (3) days per annum for illness in the immediate family.
 - (c) A mourning leave of up to five (5) days per death of an immediate family member; in the event that a single event results in the death of more than one member of a teacher's immediate family, the combined mourning period under this subsection shall not exceed five (5) days.

Up to three (3) days per annum may be used as a mourning leave – one (1) day per death – for persons other than those in the immediate family.
 - (d) A leave for professional visiting may be granted at the discretion and with the prior approval of the School Administrator.
 - (e) The Superintendent shall be authorized to grant short leaves of absence with full pay for previously approved trips to educational conferences. The Superintendent shall be authorized to establish a system for reimbursement for partial or total costs of approved trips.
 - (f) Teachers belonging to any religious faith shall be allowed to take religious holidays without loss of pay, provided they fall on school days, to a total of not more than three (3) days.
 - (g) Each teacher shall be permitted to take four (4) school days of leave with salary, annually, to attend to personal business. This personal business should be of

such an important nature that it requires that teacher's personal attention during a portion or all of a scheduled school day. Whenever possible the teacher should take care of any personal business outside of school time. Notification for such leave shall be made as far in advance as is practicable and, except for emergency, shall be made at least seventy-two (72) hours prior to the date of leave. The teacher shall state the reason for each personal day, provided that a teacher will not be required to give a reason for use of one (1) of the aforementioned days in situations where the need for the day is compelling and the teacher feels the need to keep the reason private.

Personal days shall not be used to extend vacations or holiday periods. However, if the personal day is one which would otherwise be acceptable and such day happens to be immediately adjacent to a vacation or holiday period, such personal day shall be granted without reduction in pay. For such leave, a reason must be given.

- (h) Requests for leave of absence for compelling reasons, with pay, may be granted by the Board of Education, or its designee.

8.2 Sick Leave.

- 8.2.1 Each teacher employed by the Board of Education shall be allowed fifteen (15) days sick leave with full pay each school year, cumulative without limit for teachers employed on June 30, 2015, and cumulative to 180 days for teachers hired after July 1, 2015, to be used in case of personal illness.
- 8.2.2 After sick leave with full pay has been exhausted, a teacher shall be paid the difference between his/her salary per diem and the salary per diem of a substitute for an additional thirty (30) calendar days. This benefit shall only be available to teachers who have attained tenure.
- 8.2.3 The responsibility rests with each teacher to prevent the misuse of the sick leave policy. If a teacher is absent for more than seven (7) consecutive days, the Superintendent has the right to request a note from the attending physician explaining the absence.
- 8.2.4 Any teacher joining the staff during the school year is entitled to one and one-half (1 1/2) days of sick leave for each month served.
- 8.2.5 Only in case of unavoidable emergency should a teacher be absent without advance notice or advance knowledge of the Principal or Superintendent. In such cases the teacher must make every reasonable effort possible to notify the Principal or Superintendent of such absence as soon as possible.
- 8.2.6 Long-term substitute teachers joining the staff during the school year will be entitled to one and one-half (1½) days of sick leave for each month served.

- 8.2.7. A "Sick Leave Bank" shall be established for the purpose of providing additional sick days to a certified professional employee ("Employee") and be of immediate medical necessity in the written opinion of the Employee's physician.

Withdrawal shall be for a serious health event of immediate medical necessity for which an employee would be FMLA eligible.

Each employee shall be permitted to contribute a maximum of three (3) days per year from his/her sick leave accumulation. Such contributions shall then be deducted from the Employee's accumulated sick leave.

All Employees are eligible to make deposits.

The initial contribution for an Employee shall be three (3) days and thereafter Employees must contribute a minimum of one (1) day per year to be eligible to withdraw from the Bank in that year.

Maximum withdrawal per Employee is 180 days throughout their entire employment.

Eligible Employees must have exhausted all individual personal and sick days.

Days contributed to the bank are not retrievable by the contributing Employee.

All donations must be made by October 31st of each year.

Bank deposits and balances shall be maintained by the Board of Education.

Bank withdrawals shall be granted by a Sick Leave Bank Committee comprised of an equal number of Association-appointed and Board appointed members. Should the committee be unable to come to a unanimous decision, a final decision shall be made by the Superintendent. Said decisions shall be final, binding, and not subject to the grievance procedure and/or arbitration.

8.3 Injury on the Job.

- 8.3.1 When a teacher's absence is due to an injury sustained in the course of employment, then thirty (30) days of paid leave shall be allowed. Such paid leave shall provide a salary equal to that normally paid to the teacher, minus any benefits from compensation insurance. Such paid leave shall not be deducted from accumulated sick leave time.
- 8.3.2 If the absence extends beyond thirty (30) days, the teacher shall be placed on regular sick leave, to the extent available as provided by Sections 8.2.1 and 8.2.2, with full pay minus any amount paid by compensation insurance.

ARTICLE 9
SPECIAL ABSENCES WITHOUT PAY OR WITHOUT FULL PAY

- 9.1 Military or Peace Corps Leave. Any teacher called by the Selective Service Board for military service or who enlists in the Peace Corps, shall automatically be granted a leave of absence without pay. Upon return, he/she shall be given an equivalent position with realistic salary adjustment. Any member of the Military Reserve or the National Guard called for retraining not to exceed two weeks shall be paid his/her regular salary minus the amount received for his/her training. Maintenance allowances shall not be deducted from his/her regular pay.
- 9.2 Sabbatical Leave. As a part of the professional growth program of the school district and in order to provide a well trained teaching staff, a program of sabbatical leaves will be available to the professional staff of the district.

After seven or more years of continuous employment in the Town of Easton, a teacher may request and the Board of Education at its discretion may grant a sabbatical leave under the following conditions:

- 9.2.1 Leave may be for a semester or a full year.
- 9.2.2 Leave shall be for the purpose of self-improvement and benefit to the school system through study, research or a planned program of travel. The Board may, at its discretion, grant a sabbatical leave for restoration of health.
- 9.2.3 The Board may require, through the Superintendent, such reports as it deems desirable.
- 9.2.4 No more than one person from each school will normally be on leave during the same year.
- 9.2.5 The teacher shall be selected by the School Administrator, the Superintendent and the Board of Education.
- 9.2.6 Applications shall be in the hands of the Board of Education by December 1 of the preceding academic year.
- 9.2.7 The teacher, as a condition to the granting of the sabbatical leave, shall agree in writing to return to employment in the Easton Public Schools, Regional School District No. 9 or the office of the Superintendent for two (2) years thereafter. In the event the teacher fails to so return to such employment for said two (2) years, the teacher shall reimburse fully the Board of Education or the Town of Easton, as the case may be, for all sabbatical salary and fringe benefit payments. A teacher who does not so reimburse the Board shall be responsible to the Board for reasonable costs involved in collecting such reimbursement, including reasonable attorney's fees.

It is understood that if a teacher is unable to return to employment for the required two (2) years because of death or disability, neither the teacher nor his estate shall be responsible for reimbursing the Board as provided above. For the purposes of this provision, "disability" means inability to engage in any substantial gainful activity by reason of any medically determinable physical or mental impairment which can be expected to result in death or to be of long-continued and indefinite duration.

9.2.8 Financial Provisions:

- (a) Three-quarters of the yearly salary shall be paid to the teacher.
- (b) Full retirement will be deducted.
- (c) All insurance benefits shall remain in effect with respect to such teacher on sabbatical leave if the same are available under the existing group policy at the same rate for those under said existing group policy at such time, always provided, however, that if such rate shall be greater for such teacher on account of such sabbatical leave, such teacher shall have the right to retain such coverage provided such teacher pays any excess in premiums.
- (d) Full credit will be given for steps in the salary schedule.
- (e) No provision of this policy shall preclude the acceptance of scholarship, fellowship and/or other financial stipend to facilitate advanced study by the teacher while he/she is on leave. Such awards shall belong to the individual and shall be in addition to salary paid by the Board.

9.2.9 A second leave may be granted seven years later.

9.3 Extended Leaves. A teacher may request, and the Board may grant, leaves of absence without pay on the recommendation of the Superintendent.

Request for leaves of absence for compelling personal reasons, which have been denied by the Superintendent, will be reviewed by the Board and may be granted at the Board's discretion. Compelling personal reasons include, but are not limited to, illness of a relative.

Leaves of absence are intended to be supplementary to those leaves of absence provided in accordance with state and federal statutes.

Preference will be given to requests for leaves of absence extending through the end of the year (June 30).

Leaves of absence shall be subject to the following:

- (a) Timing and duration of an approved leave of absence shall be agreed in advance by the Superintendent and the teacher. If the teacher requests an extension of a leave of absence, the Superintendent or the Board may grant that request at their sole discretion. The Superintendent or the Board may seek to reduce the term of an approved leave of absence; however, the teacher may decline such a request at his or her sole discretion.
- (b) There shall be no compensation during a leave period.
- (c) No experience on the salary schedule shall be granted during the period of a leave.
- (d) Credit toward accrual of experience or longevity shall be granted for the period of leave to the extent required by law.
- (e) During a leave of absence, hospitalization and medical benefits may be continued at the prevailing group rate if the teacher pays the premiums at monthly intervals as directed by the Board's business office.
- (f) If a teacher does not return to work at the agreed upon end of a leave of absence, such failure to return shall be considered sufficient cause for termination of the teacher's contract. If the agreed upon return date is on or after June 30 of a given year, the teacher will confirm his/her intent to return by March 1 of the year of the leave.
- (g) These provisions and the decision to grant or deny a request for a leave of absence is not subject to the grievance process.

9.4 Maternity Leave. Maternity leave shall be provided in accordance with state and federal statutes. Policies involving commencement and duration of leave, the availability of extension, the accrual of seniority and other benefits and privileges, protection under health and other insurance plans, and payment of sick leave shall be applied to disability due to pregnancy or childbirth on the same terms and conditions as they are applied to other temporary medical disabilities.

9.5 Child Rearing Leave of Absence.

- (a) The Board shall grant leave for child rearing after the birth, fostering or adoption of a child in accordance with the Family and Medical Leave Act.
- (b) The leave may extend for the remainder of the school year in which the child is born or adopted, and may, upon request of the teacher, extend for the ensuing year. Return from a childrearing leave shall only take place at the beginning of a school year.
- (c) There shall be no compensation during this leave period.
- (d) No experience on the salary schedule shall be granted during this period of leave.

- (e) Credit toward accrual of experience or longevity shall be granted for this period of leave to the extent required by law.
- (f) Sick leave not used during maternity leave shall be restored upon return to the system.
- (g) Notification of intent to return shall be submitted by the teacher on childrearing leave by March 1 of the calendar year in which the professional staff member plans to return. Failure of the teacher on childrearing leave to provide timely notification of intent to return shall be considered other due and sufficient cause for termination of the teacher's contract.

9.6 Elder Care Leave

In addition to such other provisions of this contract as may apply, teachers shall be entitled to Elder Care Leave, for the purpose of caring for an ill parent, pursuant to the provisions of the Family Medical Leave Act (FMLA) of 1993, as amended from time to time.

ARTICLE 10 **DUTIES, RESPONSIBILITIES AND WORKING CONDITIONS**

- 10.1 The Board and the Association recognize and agree that the teacher's responsibility to the school system, the students and their profession entails the performance of duties and the expenditure of time beyond the regular student school day, but that the teachers are entitled to regular time and work schedules on which they can rely and which will be fairly and evenly maintained throughout the school system. To this end, ordinarily, the teacher workday will start one-half hour (30 minutes) before and end one-quarter hour (15 minutes) after the student school day. In recognition of individual teacher and program needs, the parties agree that flexibility may be allowed by the School Administrator so long as the aggregate forty-five (45) minutes in excess of the student school day is maintained. Teachers are expected to perform, among other things but not including formal group instruction, supervision of students during this forty-five (45) minute period of time, but a minimum of twenty (20) minutes of this forty-five (45) minute period shall be without regularly assigned student contact and available for the use by the individual teacher for "teacher preparation activities" (such as those listed in 10.3 below).
- 10.2 A teacher's schedule shall provide for a one-half hour duty free lunch period, which shall be scheduled as a single period of thirty consecutive minutes.
- 10.3 Teachers will have one preparation period per day to the extent that the total teaching staff schedule shall allow. The teacher preparation time is an effective part of the school process: the teacher may use this time to either develop, modify, correct or prepare class procedures, activities and curriculum; and also for parent conferences. It will also enable teachers to observe their fellow teachers as well as to assist them, while at the same time they see how their students react to different teacher approaches in many

subject areas. In addition, the preparation period may also serve as an opportunity to either individually review current classroom situations or to share experiences with fellow teachers.

- 10.4 The teacher employment year shall consist of 186 days for returning teachers and 187 days for new teachers, with a student year of up to 183 days.

If the Board increases the teacher work year or student year during the life of the Agreement beyond the number of days specified above, the parties agree to negotiate the impact of the Board's action.

- 10.5 The student school day shall consist of 6.75 hours.

"Student school day" shall mean the time commencing when students are normally required by the administration to be in attendance at school, i.e., the time after which students would be considered tardy, and ending when students are normally dismissed.

If the Board increases the student school day beyond that specified above, the parties agree to negotiate the impact of the Board's action.

- 10.6 If the Superintendent or his/her designee determines that it is necessary for teachers to supervise cafeterias he/she will solicit teachers to volunteer for the assignment. If an insufficient number of teachers volunteer, the administration shall have the right to assign personnel to the duty.

10.7 Assignments.

- 10.7.1 The Superintendent or his/her designee shall make assignments and reassignments of teacher personnel that are in the best interests of the school system and in doing so shall consider a teacher's length of service, qualifications, the input of the impacted teacher(s), and the number of times the teacher has been reassigned in the previous five (5) years.

Prior to formalizing an involuntary reassignment, the School Administrator shall meet with a teacher to discuss the reasons necessitating the reassignment and to afford the teacher an opportunity to respond.

As soon as practical, a reassigned teacher will be provided all extant written curricula and related materials, and to the extent that the timing of a reassignment allows, the teacher shall be afforded an opportunity to observe a classroom in the areas of the new assignment and to be given access to available funds to purchase materials and supplies needed for the new assignment.

10.7.2 Assignment Notification.

- (a) Teachers shall be notified in writing of their programs for the coming school year, including the schools to which they will be assigned, the grades and/or subjects that they will teach, and any special or unusual classes that they will

have, as soon as practicable and under normal circumstances not later than June 1, assuming that a budget for the succeeding school year has been approved by the Town meeting. If a budget is not passed by June 1, teachers shall be notified of their assignment within two (2) weeks of the approval of the Town budget, provided there are no other unforeseen circumstances.

(b) The Superintendent will furnish in writing to the Association president a list of all staff not notified of their assignment by June 1 in accordance with this section. Such list will include the reasons why the Superintendent has been unable to meet the June 1 deadline.

(c) During the summer months, teachers shall be notified in writing at the address on file with the Board of any change of assignment.

10.8 Vacancies

10.8.1 All vacancies shall be posted in each school as far in advance of the appointment as possible, but, except in emergency situations, no less than ten (10) calendar days.

10.8.2 Teachers who are certified, or who can obtain proper certification by the effective date of the positions and who desire to apply for one of the posted openings shall file a written request with the Superintendent. If the teacher so requests, the teacher will be granted a conference with the Superintendent to discuss his/her written request.

10.8.3 For vacancies which open up effective with the start of a new school year, the office of the Superintendent shall notify those teachers who applied pursuant to Subsection 10.8.2, above, of the disposition of their request by August 1. For openings which occur after August 1, notice will be given within a reasonable amount of time.

10.8.4 Teachers who wish to be notified of vacancies which occur following June 1 should so inform the Superintendent in writing. Teachers selected for such vacancies will be notified as soon as practicable. At the same time, all teachers who applied for such vacant positions will also be notified of the disposition of their requests.

10.9 Contracts and Salary Agreement.

10.9.1 Within two weeks of the approval of the operating budget by the Town of Easton, each teacher continuing in employment shall receive an annual salary agreement.

10.9.2 Each teacher is expected to return the salary agreement within ten (10) days to the Superintendent of Schools.

10.9.3 No teacher will sign a salary agreement unless he/she expects in good faith to

return the following year.

10.10 Substitute Teachers

10.10.1 The Board will hire substitutes for all teacher absences whenever it is possible to do so.

10.10.2 A list of substitute teachers will be posted. Teachers may submit names of appropriate persons to the Superintendent for possible placement on the list.

10.10.3 If a substitute teacher is not available and the administration requests a teacher to substitute for a colleague during non-teaching period(s) a stipend of \$31.52 for a single class period (times two (2) for a block period) as per the school schedule will be paid to that teacher.

10.11 Student Teachers. Student teachers shall be assigned only upon the mutual agreement of the cooperating teacher, TEAM coordinator, Building Administrator and Assistant Superintendent.

10.12 The Board shall provide eight (8) copies to the Association and post the contract on the district's website at no expense to the teacher.

10.13 At the Helen Keller Middle School, when making the schedule for academic teachers who teach five (5) or more different preparations for five (5) days per week, reasonable efforts shall be made to exempt such teachers from non-teaching duties before and after the instructional day.

10.14 Teachers involved in the team structure at Helen Keller Middle School will have at least three (3) periods per week within the student instructional hours as team planning time. This practice will be implemented to the extent that scheduling and staffing levels allow.

10.15 The part-time designation for teachers shall be calculated as a percentage of the full-time teacher work year (i.e. a teacher employed for 80% of a 186 day teacher work year will be employed for 148.8 days or the equivalent thereof).

10.16 At Samuel Staples School, to the extent that scheduling and staffing levels allow, the Board agrees to provide two (2) forty-minute collaborative planning periods per week in addition to the teacher's regular planning periods.

In the event that a scheduled collaborative planning period is rendered unavailable for team collaboration by an administrative decision, the affected teachers shall be offered an opportunity to meet at times beyond the regular teacher work day at the daytime chaperone rate for the equivalent time after the third such occurrence, if alternative planning time cannot be rescheduled during that week.

10.17 Parent/Teacher Conferences. To the extent practical, when scheduling routine parent/teacher conferences, teachers shall continue to accommodate parents whose work schedules do not lend themselves to meeting within the normal teaching day. The

administration reserves the right to schedule two (2) sessions of Parent/Teacher conferences, not to exceed three days per session, to be held during the school day. One session of Parent/Teacher conferences shall be held in the fall and one session shall be held in the spring. Nothing in this Section 10.17 shall alter the provisions of Section 10.4 of Article 10. However, the Board reserves the right to change the student year, subject to the provisions of Section 10.4 of Article 10.

- 10.18 In each building, accurate opening and closing times for the 6.75 hour student school day shall be posted prior to the fall start of each school year.
- 10.19 The Superintendent shall establish a procedure and appropriate form(s) for paying directly to conference providers the pre-approved partial or total conference costs and for teachers to obtain approval for reimbursement of other expenses. All such transactions shall be processed in a timely manner.
- 10.20 The personal property of a teacher, the value of which has been agreed to in writing by the teacher and the School Administrator, and which, when authorized in advance in writing by the building principal to be used to enrich the educational program, is stolen or damaged as the result of a security breach of a school building, shall be fully reimbursed, upon submission of a report to the superintendent.
- 10.21 The scheduling of PPT's is the sole responsibility and at the sole discretion of the Director of Special Services or designee. When scheduling PPT's the Director shall take into account and attempt to avoid conflict with those periods devoted to teacher common planning, teacher preparation and team meetings, in that order of priority.
- 10.22 If it is anticipated that a teacher's schedule is to be changed for three (3) or more consecutive days, the affected teacher(s) shall first be consulted and offered an opportunity to provide input in the projected change of schedule.
- 10.23 The Board of Education shall provide teachers access to the building between the hours of 7 a.m. and 8 p.m. the day before the start and the day after the end of the teacher work year to allow teachers an opportunity to voluntarily set up and/or close their classrooms, if they so desire.
- 10.24 New Member Meetings. Association representatives will have up to thirty (30) continuous minutes during new teacher orientation, occurring prior to the student school year, to exclusively speak with new members and carry out membership activities. Administrators will be allowed to attend the Association's new teacher orientation meeting.
- 10.25 Association Access. In order to ensure effective communications regarding issues affecting the parties, the Association shall be permitted the following:
 - A. Access by its designated representatives to all schools and other work areas at all times, provided that appropriate visitor sign-in procedures are followed (if applicable) and that student instruction is not disrupted.

- B. Use of bulletin boards in areas where students are not normally present.
- C. Use of school email and interoffice mail to communicate Association information (EEA shall use its own paper).
- D. Access to all schools without charge after the normal student day for the purposes of holding meetings.

ARTICLE 11 **EVALUATIONS**

The Board of Education shall provide each new teacher, at the time of hire, and all teachers at such time it is amended, the performance appraisal system document in use for evaluation of teachers. The performance appraisal system document may be amended from time to time in accordance with Section 10-151b and other relevant provisions of the Connecticut General Statutes and the guidelines promulgated thereunder by the Connecticut State Board of Education. Nothing in this article shall, however, require the Board to negotiate any amendments to the performance appraisal system with the Association, regardless of when those amendments are made.

Once a teacher's goal(s) is/are set and approved for the year, it is expected that the approved goal(s) will ordinarily be maintained uninterrupted. Changes in the goal(s) during the school year may occur pursuant to the performance appraisal system for unsatisfactory performance or other just cause.

ARTICLE 12 **JUST CAUSE**

- 12.1 No unit member shall be disciplined without just cause.
- 12.2 In connection with a termination or nonrenewal, a member of the bargaining unit must utilize the procedures contained in Section 10-151 of the Connecticut General Statutes and not the provisions of the grievance and arbitration provisions of this Agreement.

ARTICLE 13 **PERSONNEL FILES**

- 13.1 Before any material is made a part of a teacher's personnel file, the teacher shall be given the opportunity to read such material and to append a written response or rebuttal

to the file copy.

In addition, no anonymous material or unsubstantiated correspondence, or unsubstantiated statement of allegations shall be placed in such a file until an impartial investigation has been completed and the results have been attached to the complaint.

- 13.2 No materials relating to an ongoing investigation of a complaint shall be placed in a teacher's personnel file until the appropriate administrator has made a finding with respect to the complaint and officially submits the finding for inclusion in the personnel file, prior to which the teacher shall have the right to review the finding and to offer a response or rebuttal, which shall be made part of the file.

ARTICLE 14 **SEVERABILITY**

- 14.1 In the event that any provision or portion of this Agreement is ruled invalid for any reason by an authority of established and competent legal jurisdiction, the balance and remainder of this Agreement shall remain in full force and effect.
- 14.2 If a provision that is ruled invalid cross references other sections of the Agreement and there is a question regarding the validity of such sections, the parties will attempt to reach agreement on the resolution of the situation. Upon failing resolution, a grievance or other available avenue of resolution may be pursued.

ARTICLE 15 **RETIREMENT INCENTIVE PROGRAM**

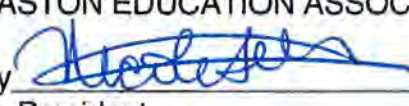
At its sole discretion, the Board may offer a retirement benefits program.

IN WITNESS WHEREOF, the parties hereto have caused these presents to be executed by their proper officers, hereunto duly authorized and their seals affixed hereto, as of the date and year first above written.

EASTON BOARD OF EDUCATION

By  _____
Chair

EASTON EDUCATION ASSOCIATION

By  _____
President

Appendix A
Easton 2018-2019 Salary Schedule

	BA SALARY	MA SALARY	MA +15 SALARY	6 th Year SALARY	PhD SALARY
1	\$47,766	\$51,748	\$53,074	\$57,055	\$60,233
2	\$49,026	\$53,689	\$55,052	\$59,127	\$62,306
3	\$50,318	\$55,706	\$57,105	\$61,270	\$64,449
4	\$51,646	\$57,798	\$59,235	\$63,495	\$66,673
5	\$53,007	\$59,971	\$61,444	\$65,797	\$68,976
6	\$54,404	\$62,222	\$63,736	\$68,188	\$71,367
7	\$55,837	\$64,558	\$66,111	\$70,659	\$73,839
8	\$57,311	\$66,985	\$68,578	\$73,226	\$76,404
9	\$58,821	\$69,495	\$71,133	\$75,884	\$79,062
10	\$60,975	\$72,107	\$73,785	\$78,635	\$81,814
11		\$74,816	\$76,535	\$81,489	\$84,668
12		\$77,627	\$79,390	\$84,447	\$87,625
13		\$80,542	\$82,351	\$87,512	\$90,692
14		\$83,566	\$85,422	\$90,691	\$93,869
15		\$86,703	\$88,606	\$93,978	\$97,158
16		\$90,855	\$92,827	\$98,362	\$101,573

*No new entrants will be added to the MA +15 salary lane as of July 1, 2017.

*The parties acknowledge the potential to redesign the grid in the future CBA negotiations.

Appendix B
Easton 2019-2020 Salary Schedule

	BA SALARY	MA SALARY	MA +15 SALARY	6 th Year SALARY	PhD SALARY
1	\$47,766	\$51,748	\$53,074	\$57,055	\$60,233
2	\$49,026	\$53,689	\$55,052	\$59,127	\$62,306
3	\$50,318	\$55,706	\$57,105	\$61,270	\$64,449
4	\$51,646	\$57,798	\$59,235	\$63,495	\$66,673
5	\$53,007	\$59,971	\$61,444	\$65,797	\$68,976
6	\$54,404	\$62,222	\$63,736	\$68,188	\$71,367
7	\$55,837	\$64,558	\$66,111	\$70,659	\$73,839
8	\$57,311	\$66,985	\$68,578	\$73,226	\$76,404
9	\$58,821	\$69,495	\$71,133	\$75,884	\$79,062
10	\$61,584	\$72,107	\$73,785	\$78,635	\$81,814
11		\$74,816	\$76,535	\$81,489	\$84,668
12		\$77,627	\$79,390	\$84,447	\$87,625
13		\$80,542	\$82,351	\$87,512	\$90,692
14		\$83,566	\$85,422	\$90,691	\$93,869
15		\$86,703	\$88,606	\$93,978	\$97,158
16		\$91,763	\$93,755	\$99,345	\$102,588

*No new entrants will be added to the MA +15 salary lane as of July 1, 2017.

*The parties acknowledge the potential to redesign the grid in the future CBA negotiations.

Appendix C
Easton 2020-2021 Salary Schedule

	BA SALARY	MA SALARY	MA +15 SALARY	6 th Year SALARY	PhD SALARY
1	\$47,905	\$51,898	\$53,228	\$57,220	\$60,408
2	\$49,168	\$53,845	\$55,212	\$59,298	\$62,487
3	\$50,464	\$55,868	\$57,271	\$61,448	\$64,636
4	\$51,796	\$57,966	\$59,407	\$63,679	\$66,866
5	\$53,161	\$60,145	\$61,622	\$65,988	\$69,176
6	\$54,562	\$62,402	\$63,921	\$68,386	\$71,574
7	\$55,999	\$64,745	\$66,303	\$70,864	\$74,053
8	\$57,477	\$67,179	\$68,777	\$73,438	\$76,626
9	\$58,992	\$69,697	\$71,339	\$76,104	\$79,291
10	\$62,391	\$72,316	\$73,999	\$78,863	\$82,051
11		\$75,033	\$76,757	\$81,725	\$84,914
12		\$77,852	\$79,620	\$84,692	\$87,879
13		\$80,776	\$82,590	\$87,766	\$90,955
14		\$83,808	\$85,670	\$90,954	\$94,141
15		\$86,954	\$88,863	\$94,251	\$97,440
16		\$92,965	\$94,984	\$100,647	\$103,932

*No new entrants will be added to the MA +15 salary lane as of July 1, 2017.

*The parties acknowledge the potential to redesign the grid in the future CBA negotiations.

APPENDIX D

EASTON PUBLIC SCHOOLS

APPLICATION FOR EARLY RETIREMENT PROGRAM

Received by _____
Date _____
Time _____

Name _____

Age as of June 30, _____

Date of Birth _____

Length of service as teacher in Easton as of June 30, _____

Date of Hire: _____

WAIVER AGREEMENT

TO: Superintendent of Schools

By my application to participate in the Early Retirement Program I agree to waive my right to file any claim against the Easton Board of Education and/or the Easton Education Association that in the establishment or implementation of this plant either party (or both parties) has discriminated against me on the basis of my age in violation of statute or federal law, including the Age Discrimination in Employment Act of 1967 (29 U.S.C 626) as amended and C.G.S. Section 46a-60, or has violated any of my other rights including those arising under constitutional provisions, statutes, regulations or case law. I have been advised in writing to consult with an attorney prior to executing this waiver agreement and have been given at least forty-five (45) days within which to consider this waiver agreement. I further understand that I have seven (7) days from the execution of the waiver agreement within which I may revoke the agreement and said agreement will not become enforceable until such revocation period has expired.

Furthermore, I waive my right upon application to file any grievance relating to the matter of the Early Retirement Program under the existing collective bargaining agreement.

Signature _____

Date _____

RESIGNATION

TO: Superintendent of Schools

I hereby submit my resignation as a teacher in the Easton Public Schools effective June 30, _____, contingent upon the approval of my application for the Early Retirement Program by the Easton Board of Education.

Signature _____

Date _____

